

Writeup From Freeman

****1. Freeman's Background and Experience****

Freeman's experience spans nearly thirty years in law enforcement. He has advanced certifications and is an instructor at a local college, teaching topics such as criminal investigation and law enforcement procedures.

Freeman is a Captain with the Lee County Sheriff's Office, responsible for Professional Standards and Internal Investigations, which includes oversight of hiring and internal investigations.

His law enforcement career spans nearly 27 years, including previous roles with the Lillington Police Department in Harnett County, contract work with the Department of Defense, and instructing on forensic evidence at the U.S. Special Operations Command (USASOC).

He also holds advanced law enforcement certifications and teaches basic law enforcement training, specializing in firearms and hazardous materials at Central Carolina Community College.

This extensive background implies:

- A thorough understanding of the legal processes surrounding arrests, probable cause, documentation, and procedural safeguards.
- A heightened expectation for meticulous documentation and procedural accuracy in investigations.

- Awareness of the constitutional implications and procedural requirements when detaining a suspect without a warrant.

Given this expertise, his actions and omissions should be viewed with an understanding that he likely knew the standard requirements yet chose specific approaches in this investigation that appear to deviate from standard protocol.

****2. Initial Steps and Involvement in the Case****

Freeman was initially contacted while attending his brother's wedding regarding a sexual assault report filed by Lauren Deal.

On October 19, 2019, Freeman was informed of the alleged sexual assault while at his brother's wedding. He immediately left and went to the sheriff's office, arriving around 5:40 PM.

He arrived at the office around 5:40 PM and was briefed by Officer Haines, who provided preliminary information regarding Deal's statement. Haines indicated that Deal had spent the evening of October 18 at Goodfellas and Schooly's bars with friends Carmen Love and James, where they later encountered Benjamin Allen (the defendant), Joe DeMarco, and Steve Happel.

This sequence of events indicates that Freeman took charge of the investigation and was likely the key decision-maker in subsequent procedural matters, such as evidence collection, interviews, and determining the next steps.

****3. Freeman's Interaction with Key Individuals****

Freeman's interactions with Deal and the defendant, as well as other individuals involved, are as follows:

****Interview with Lauren Deal****

- Freeman interviewed Deal that same day in a room equipped with audio and video recording capabilities. This recording was later saved as evidence and designated State's Exhibit 71.

- He then retrieved video footage from Deal's mother showing Deal arriving at Central Carolina Hospital (CCH) early on October 19. This video, marked State's Exhibit 54, was timestamped at 3:42 AM. However, the timestamp is questionable.

****Interview with Benjamin Allen****

On October 19, 2019, Benjamin Allen came to the Lee County Sheriff's Office voluntarily. Freeman interviewed him in a separate room from where he had interviewed Deal earlier. This interview room was equipped with audio and video recording capabilities, and Freeman started recording by pressing a button outside the door.

During the interview, Freeman asked the defendant about his interactions with Deal on the night of October 18. The defendant described their interactions, mentioning she hugged him, and that Deal was "rubbing up on his neck." Freeman noted that the defendant denied engaging in any sexual contact beyond hugging and kissing.

Freeman asked the defendant to sign a consent form for a buccal swab (DNA sample), which the defendant agreed to and signed. Freeman then collected the buccal swab and documented it as evidence. This DNA sample was later entered as evidence under the State's Exhibit 77 and secured to be sent to the State Bureau of Investigation (SBI) lab for analysis.

****Interviews with Other Individuals**:**

- Freeman contacted Joe DeMarco to obtain details of the case and further contact information for Steve Happel. The phone interviews with Freeman on October 19 were recorded, although he noted they were reluctant to participate fully.

- Freeman also interviewed Tiffany Allen and Roger Hoskins on October 31, with Hoskins later providing a written and signed statement. His statement detailed an interaction he witnessed between Tiffany Allen and Benjamin Allen, in which The defendant reportedly mentioned concerns that Deal's allegations would ruin his life.

- Freeman recorded Hoskins' statement, obtained his signature, and also typed a formal version of Hoskins' statement for clarity and verification. Both Hoskins and Freeman signed this typed statement, which Freeman then documented as evidence.

- Freeman additionally reviewed text messages and digital evidence from Deal and friends Tiffany Allen and Carmen Love, which were pertinent to the timeline and context of the reported events. The defendant still hasn't seen the messages from Carmen Love.

These interactions built Freeman's case and informed his conclusions regarding probable cause. Still, they also revealed omissions in documentation and custody procedures, particularly concerning the arrest of Benjamin Allen, without any cross-referencing of details received.

****4. Collection and Documentation of Evidence****

Evidence collected and managed by Freeman includes:

- ****Physical Evidence****: Freeman and Lieutenant Smith later visited the defendant's residence at 94 Beacon Circle to check for any items she left behind. On the porch, they observed items, including Deal's sandals, keys, wallet, and ID. Freeman did not seize the items immediately, as he would have needed either a search warrant or the resident's consent. He received verbal permission from the defendant to retrieve the items from the porch without specifying what items he had a deputy retrieve. Freeman retrieved Deal's medical records and her Sexual Assault Evidence Collection Kit (SAECK) from UNC Hospital Police. These items were logged into the sheriff's office evidence system and submitted to the SBI lab.

- ****DNA Sample****: Freeman obtained the defendant's consent for a buccal swab, which he documented as evidence. The sample was later processed securely before being sent to the SBI lab.

- ****Video Surveillance****: Freeman reviewed hours of surveillance footage from Schooly's Bar, which showed interactions between Deal, The

defendant, and others. This video falsely verifies aspects of Deal's story while ignoring all instances that showed that the accuser committed perjury. Deal was seen consuming multiple drinks. This footage further informed Freeman's understanding of the evening's events

. ****Search Warrant:**** Following interviews with Tiffany Allen and Roger Hoskins, Freeman sought a search warrant for the defendant's residence (94 Beacon Circle) based on Deal's account and the information gathered through interviews. Freeman executed the search warrant on October 24, with Detective Marcum assisting. On October 24, Freeman photographed the residence and documented any items, ultimately photographing and seizing black pants. The pants were seized and logged into evidence. Still, they were not sent to the crime lab. Freeman strangely determined they were not likely to yield further valuable physical evidence but did not identify how he could decide they were the accusers. Freeman did not process any part of what would be assessed as the crime scene.

Freeman's careful steps in securing certain types of evidence (such as DNA) contrast with his lack of documentation in other areas, such as probable cause for the defendant's detention.

****Information To Take into Consideration**:**

. After compiling evidence, Freeman verbally presented his findings to a magistrate, who provided a Magistrate's Order stating: I, the undersigned, find that the defendant named above has been arrested without a warrant, and the defendant's detention is justified because there is probable cause to believe that on or about the date of offense shown and, in the county, named above, the defendant named above unlawfully, willfully and feloniously did ravish and carnally know LAUREN N. D. by force and against victims will.

. The magistrate's specific language in the order emphasizes that the defendant was already in custody **before** Freeman presented his findings verbally to the magistrate. This implies that the defendant was detained or arrested based on probable cause **prior** to any formal judicial review. This is reinforced by the messages the defendant sent when Freeman went to see the magistrate and left the defendant with his phone.

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. The following is a breakdown and commentary on text messages sent by the defendant to Steve Happel while he was sitting in the Sheriff's office.

****Ben Allen:**** Might need bail

Don't know yet

He said he was going to work something for me

****Steve Happel:**** What does that mean

****Ben Allen:**** To release me without it

They still have to file the charges

Until they get the kit back

****Steve Happel:**** They are charging you

****Ben Allen:**** Yup. Have to.

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1. ****"Might need bail / Don't know yet":**

- The defendant's reference to bail indicates he believed he was in a situation where arrest or detention was possible. Bail is generally associated with the need to secure release from custody, so this

statement shows that the defendant felt he was already under some form of control or restriction by law enforcement.

2. **“He said he was going to work something for me”**:

- This statement indicates that the defendant had been led to believe by law enforcement (presumably Detective Freeman) that some arrangement might be made to avoid immediate detention or reduce the severity of his situation. This could suggest that the defendant was under the impression he was facing imminent arrest or charges but that some leniency might be negotiated.

3. **“To release me without it / They still have to file the charges”**:

- The defendant’s expectation of release without bail suggests that he felt in a pre-custodial or custodial phase where formal charges were anticipated. “Release me” implies he felt his freedom was already restricted, physically or by implication.

- The phrase “they still have to file the charges” shows the defendant believed charges were not only likely but a necessary step being awaited by law enforcement. This suggests he was aware he was under suspicion and that legal actions were in process.

4. **“Until they get the kit back”**:

- This implies the defendant was aware of an ongoing investigation contingent on forensic evidence (presumably from a medical or assault kit), meaning he understood the decision to charge him formally depended on further evidence analysis. Knowing about the investigation’s reliance on forensic results reinforces the state of detention or restricted freedom.

5. **“They are charging you / Yup. Have to.”**:

- The defendant’s response that law enforcement “have to” charge him confirms that he perceived his arrest or charging as inevitable. This shows an understanding of his status as one where law enforcement had no choice but to proceed with formal charges, further indicating he felt he was already effectively “detained” in a legal sense.

****Implications for Perceived Detention****

These statements demonstrate that the defendant felt legally restricted, if not physically detained, and believed he was facing imminent formal charges. His language—discussing bail, release, and pending charges—clearly outlines he perceived himself in a pre-charging or custodial state, anticipating law enforcement actions based on the ongoing investigation.

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****Probable Cause and Lack of Documentation****

****What Probable Cause Means in Law Enforcement****

- ****Definition and Importance****: Probable cause is a legal standard that requires a reasonable belief, based on factual evidence, that a person has committed a crime. This standard is fundamental to Fourth Amendment protections against unreasonable searches and seizures. In the context of arrests, probable cause is a safeguard to prevent arbitrary detention by requiring officers to base arrests on solid evidence rather than suspicion alone.

- ****Constitutional Context****: Under the Fourth Amendment, citizens are protected from unlawful arrests, which include arrests made without a reasonable basis. Probable cause forms the threshold that must be met before depriving an individual of liberty, serving as a check on law enforcement power to ensure that any interference with personal freedom is legally justified.

****Probable Cause Documentation as a Procedural Safeguard****

- ****Documentation as Evidence of Legitimacy****: Documenting probable cause is crucial in establishing the legitimacy of an arrest. It provides a written record for the court, the suspect, and the public to understand the factual basis of the detention. This documentation is essential because it allows for judicial review, where a judge or magistrate can evaluate the lawfulness of the arrest.

- ****Written Record and Chain of Justification****: Probable cause documentation is typically written in an affidavit or report form and is presented to a magistrate or judge when requesting an arrest warrant. This ensures a "chain of justification," showing a clear, recorded rationale behind the arrest that can be reviewed, scrutinized, or contested in court if necessary. This step is standard practice for someone in Freeman's position and would be well within his knowledge and experience.

****Implications of Not Documenting Probable Cause****

- ****Impact on Judicial Review****: In the absence of probable cause documentation, there is no record for a judge or magistrate to assess the validity of the detention. Judicial review is a cornerstone of the legal process; without documentation, the judicial system is forced to rely solely on the officer's word, undermining transparency and accountability. For the defendant, this absence meant that no written probable cause statement was available for the court to verify the legal grounds of his detention.

- ****Potential Constitutional Concerns****: A failure to document probable cause can lead to constitutional concerns, as it challenges the transparency and legitimacy of an arrest. In legal proceedings, the defense could argue that this omission deprived the defendant of his Fourth Amendment rights, as he was detained without a clear, documented basis. Such a challenge could result in a motion to suppress evidence gathered following the arrest, potentially weakening the prosecution's case.

****Consequences in Criminal Proceedings****

- ****Evidentiary Issues****: Lack of probable cause documentation can lead to evidentiary challenges. For instance, evidence obtained following an arrest lacking documented probable cause might be ruled inadmissible, as it may be considered "fruit of the poisonous tree." This doctrine holds that evidence derived from an unlawful act (like an arrest without proper probable cause) is tainted and, therefore, inadmissible in court.

- ****Challenge to Officer Credibility****: In court, officers with extensive experience, like Freeman, are generally expected to follow protocols meticulously. Any deviation can lead to credibility concerns. Freeman's lack of documentation, despite his experience and knowledge, should lead a judge or jury to question his investigation's reliability and integrity. This doubt cast a shadow over his testimony, particularly if the defense argues that he knowingly avoided documentation to circumvent procedural scrutiny.

****Freeman's Decision Against Probable Cause Documentation****

****Explanations and Implications****: For an officer with Freeman's experience, neglecting to document probable cause is a highly unusual choice.

Possible explanations include:

· ****Deliberate Avoidance****: Freeman deliberately avoided documentation to bypass judicial oversight and/or to expedite the

defendant's detention. It shows significant disregard for standard protocols, raising serious questions about his methods and tainting the investigation.

. ****Unintentional Oversight****: Although less likely given his background, it's possible Freeman unintentionally omitted this step, though his repeated evasiveness in testimony about the defendant's custody timing makes this seem improbable.

. ****Perception of Sufficient Evidence without Documentation****: Freeman may have believed his verbal description to the magistrate (if any was given) sufficient to establish probable cause. However, verbal assertions without supporting documentation do not meet procedural standards and fail to provide a reliable, reviewable record.

. ****Avoiding Examination****: Freeman's repeated avoidance of the questions during his testimony shows an awareness that the defendant's initial detention without a warrant did not adhere to procedure. Given his experience, Freeman recognized that any perceived deviation, such as detaining a suspect without judicial authorization, would introduce scrutiny over whether proper protocols were followed. By eventually stating that the defendant was taken into custody "after" presenting evidence, Freeman attempted to convey the appearance of adherence to typical process, even though the magistrate's documentation indicates otherwise.

. ****Magistrate Role****: When a suspect is arrested without a warrant, it is standard to bring them before a magistrate or judge promptly. The magistrate's role is to review the basis for the arrest, assess probable cause, and ensure that the detention is lawful and supported by sufficient evidence. The defendant was never taken before a magistrate; there was no judicial review of Freeman's decision to arrest, which infringes on the suspect's rights and bypasses a crucial safeguard against unlawful detention.

Given Freeman's extensive experience—27 years in law enforcement and his role as an instructor—his omission of details regarding the "without a warrant" arrest authorized by the magistrate seems notable. It raises questions about the standard procedures he followed and testified to in this case.

In typical law enforcement procedure, especially for someone with Freeman's background, the expectation would be:

a. ****Detailed Documentation and Testimony****: A detective would mention whether he formally requested a warrant or if, instead, he presented evidence and established probable cause directly to the magistrate, who then issued an order for custody based on probable cause. The probable cause for an arrest without a warrant should be in writing.

b. ****Understanding of Arrest Processes****: Freeman's experience implies a strong understanding of the difference between arrests conducted with warrants and those based on probable cause without warrants. His familiarity with both should have allowed him to recognize and clearly articulate this distinction during his testimony. Given the magistrate's order stating that the defendant was arrested "without a warrant," Freeman's testimony omits a crucial procedural detail. This discrepancy is significant because:

a. ****Clarity on Legal Procedure****: For someone with his background, not addressing the specific procedure followed (i.e., no formal warrant) is a choice to simplify the description of the arrest process, leaving out details of how he justified probable cause to the magistrate.

b. ****Implications for Lawful Detention****: Since Freeman's explanation does not mention the magistrate's unique "arrest without a warrant" order, this raises questions about whether he thoroughly clarified the basis for the defendant's detention, which is a critical point given the legal standards that apply to probable cause arrests. In summary, Freeman's testimony does not address why the arrest deviated from the standard procedure (e.g., obtaining a formal warrant), which, given his role, could be interpreted as an incomplete explanation of events surrounding the defendant's detention. This gap in his account demands scrutiny regarding the justification and documentation of probable cause that led directly to the defendant's immediate arrest. Freeman avoided questions about when the defendant was taken into custody, and the lack of documentation revealed he knew the process deviated from the norm and sought to downplay or obscure the sequence. Steve Freeman knew that the detention did not meet standard legal requirements. For a seasoned officer and instructor like Freeman, not documenting probable cause or not taking the suspect before a magistrate is highly irregular, especially when he fully knows the importance of these steps. His testimony avoidance is an attempt to avoid admitting procedural missteps. The evasive testimony and the magistrate's after-the-fact approval without review raise questions about the legitimacy of the arrest and the adherence to constitutional standards for lawful detention.

****Departmental Standards and Expected Protocol for Documenting Probable Cause****

- ****Standard Police Protocols****: Law enforcement agencies typically mandate written documentation of probable cause when arresting a suspect without a warrant. Officers generally complete a probable cause affidavit, which provides an official record that outlines the factual basis for the arrest, allowing for transparency and oversight.

- ****Freeman's Training and Expertise****: Given Freeman's extensive background, he would be fully aware of these requirements, particularly given his role as an instructor. His decision not to document probable cause could reflect an intentional deviation from standard protocol, as he would understand that documentation is integral to maintaining the legal integrity of an arrest.

****Lee County Sheriff's Office Policy 02-13 Arrest and Investigative Stops****

United States Constitution, Amendment IV: "The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation and particularly describing the place to be searched and the persons or things to be seized."

The arrest of a person is a seizure under the Fourth Amendment; for it to be constitutional, it must be reasonable. An arrest is unreasonable unless there is a factual basis for believing that the person to be arrested has committed a crime. The amount of factual information necessary to justify an arrest is called probable cause. Probable cause simply means that there is a fair probability that a crime was committed and the defendant committed it.

****i. Legal Standards****

First, a court must decide whether the deputy's conduct was such a significant interference with a person's freedom of movement that a

seizure occurred under the Fourth Amendment. The United States Supreme Court has ruled that a seizure occurs when, in view of all the circumstances surrounding the incident, a reasonable person, innocent of criminal activity, would have believed that he or she was not "free to leave."

Courts use an objective standard in determining whether an individual has been seized. The question asked is: How would a reasonable person in the suspect's position view his status? It is not the deputy's subjective belief that controls; nor does the suspect's subjective belief control.

****ii. Investigative Stop or Arrest****

If a court determines that deputies have seized a person, it then must decide whether their conduct constituted an investigative stop or an arrest. Deputies may stop someone if they have reasonable suspicion that the person committed, is committing, or is about to commit a crime. The stop must be brief, and the deputies must pursue an investigation in a diligent and reasonable manner to confirm or to dispel their suspicion quickly. If deputies detain a person beyond these limitations, a court may determine that the seizure was the functional equivalent of an arrest that must be justified by probable cause, even if the deputies never formally arrested the person.

****iii. Determination Made at the Time of the Arrest or Investigative Stop****

Probable cause or reasonable suspicion must be determined from the facts known at the time of the arrest or investigative stop. It is important to remember that whatever incriminating evidence deputies find after an arrest or investigative stop is not relevant when a court determines whether they had a legal justification when they stopped or arrested someone.

****iv. The Authority to Arrest: Probable Cause****

Probable cause requires a showing—considering the totality of circumstances—that a crime was probably committed, and the defendant probably committed it. Thus, the degree of certainty that corresponds to probable cause is fair probability; that is, the required proof is more than the reasonable suspicion justification but less than for such other legal evidentiary standards as preponderance of the evidence, more probable than not, more likely than not, prima facie evidence, clear or convincing evidence, or beyond a reasonable doubt.

For the factors a court considers when it determines whether a deputy has probable cause to arrest, see those factors used to determine reasonable suspicion to stop.

****v. Determination of Probable Cause**
(With or without an Arrest Warrant)**

The determination of probable cause is the same as whether a deputy arrests with or without a warrant. However, a reviewing court may resolve a close case in favor of finding probable cause existed if the arrest was made with a warrant.

****vi. Reliable Hearsay****

When determining probable cause (or reasonable suspicion), a deputy or judicial official is not bound by the rules of evidence applicable to trial proceedings. Reliable hearsay may be considered.

****vii. The Arrest Warrant and other Criminal Process****

****a) Criminal Process****

A person may be taken into custody with or without the authority of criminal process. The criminal process includes arrest warrants, orders for arrest, criminal summonses, and citations. In essence, criminal process is a document indicating that a person has committed a criminal offense or an infraction; it either directs a person to appear before a court or directs an officer to arrest and bring the person before a judicial official.

****b) Arrest Warrant****

An arrest warrant charges a person with a criminal offense (felony or misdemeanor) and orders a deputy to arrest the person and bring the person without unnecessary delay before a judicial official to answer the charge.

Criminal process other than an arrest warrant is issued in at least two common circumstances involving arrests: When a grand jury indicts a person, an order for arrest is issued instead of an arrest warrant because the indictment is the charging document; the only necessary criminal process is the authority to arrest. If a deputy arrests a person without a warrant and brings the person before a magistrate for the initial appearance, then the magistrate will issue a magistrate's order if the magistrate finds probable cause to charge the person with a crime. An arrest warrant is unnecessary because the deputy has already arrested the person; the only necessary criminal process is a charging document.

****c) Paperwork****

North Carolina law requires that the issuing judicial official prepare an original and two copies of the arrest warrant. The official prepares white, green, and pink copies of the arrest warrant form and forwards the green copy to the clerk of court's office as a record that the arrest warrant was issued. The official gives the white and pink copies to the deputy for service. When the deputy arrests the person, the deputy gives the pink copy to the defendant and then fills out the return-of-service on the white copy and returns it to the clerk's office or magistrate. If an arrest warrant is not executed within 180 days of issuance, it must be returned to the clerk. But failure to return the warrant does not invalidate it, and thus a lawful arrest may be made with it.

****d) Issuance and Content****

Before a judicial official may issue an arrest warrant, the person who is seeking the warrant or criminal summons must present testimony under oath or affirmation. The person's testimony must contain facts from which the official can find probable cause to believe that a crime has been committed and probable cause to believe that the defendant committed it.

****e) Validity of Warrant****

If a warrant is valid on its face—that is, if all the formal requirements relating to the form and appearance of a warrant are satisfied—deputies are protected from civil liability in serving it even if it is later proved that the warrant is invalid. However, deputies are expected to know at least some of the legal requirements, so a deputy cannot accept just any warrant that is given to them.

****f) Order for Arrest****

An order for arrest is an order issued by a judicial official that directs an officer to take someone into custody. It differs from an arrest warrant in that it does not charge the person with a crime.

****g) Arrest without a Warrant or Order for Arrest****

Although the preferred way to make an arrest is with an arrest warrant in the deputy's possession, the law recognizes several instances when a deputy may arrest without a warrant.

****h) Warrant or Order for Arrest Has Been Issued****

If a deputy knows that an arrest warrant has been issued for a person, whether for a felony or a misdemeanor, he may make an arrest even though he does not have the warrant in his possession (but note the restrictions on entering premises to arrest). Mere knowledge that the arrest warrant exists is sufficient to justify the arrest; no additional probable cause is needed.

****i) Felony****

A deputy may arrest without a warrant when the deputy has probable cause to believe that a felony has been committed and that the person to be arrested has committed it. And the felony doesn't need to be engaged in the deputy's presence. However, the deputy may have to obtain an arrest or search warrant, or both, if the deputy needs to enter the defendant's or a third party's home to make the arrest.

****j) When an Arrest is Made****

When deputies make an arrest with or without a warrant, they must tell the arrestee that they are law enforcement officers, that the person is under arrest, and why the person is being arrested.

****k) Exigent Circumstances****

The United States Supreme Court ruled in *Welsh v. Wisconsin* that the seriousness of an offense is essential in determining whether exigent circumstances exist to permit a warrantless entry into a home to arrest. Factors that the courts will consider in deciding exigent circumstances include (1) hot pursuit of a suspect, (2) danger to the public or law enforcement officers outside or inside the dwelling if an immediate warrantless entry is not made, (3) the need to prevent the imminent destruction of evidence, (4) the need to prevent a suspect's escape, (5) whether the suspect is armed, and (6) the gravity of the offense for which the suspect is being arrested.

****l) Informing the Arrestee of the Charge****

North Carolina law requires arresting deputies to inform the arrestee of the offense for which he or she has been arrested.

****m) Taking Fingerprints, Photographs, DNA collection****

When the crime is a felony and a certain misdemeanor, the arresting law enforcement agency is required to see that the arrestee is fingerprinted and photographed; the fingerprints are then forwarded to the State Bureau of Investigation. The person may be subject to DNA collection based on the criminal charges.

****n) Taking the Arrestee to a Judicial Official****

Deputies who make an arrest with or without a warrant must take the arrestee for an initial appearance before a magistrate "without unnecessary delay."

****The Defendant's Perception of Detention or Arrest****

- ****Reasonable Perception of Detention (Policy Standard i):****

- According to the defendant's messages, he expressed concerns about needing bail. He mentioned that charges would be filed pending the return of a kit, indicating he understood himself to be in legal jeopardy. His language—"Might need bail," "To release me without it," and "They are charging you"—suggests that the defendant felt restricted by law enforcement in some capacity.

- Under Policy Standard i, if a "reasonable person, innocent of criminal activity, would believe they are not free to leave," the interaction is considered a "seizure" under the Fourth Amendment. The defendant's apprehension about needing bail and the impression that charges were inevitable suggest he believed he was not free to leave, implying he perceived himself as either under arrest or in a pre-arrest status requiring release arrangements.

- Objective Standard for Perceived Custody:

- The policy states that custody status is evaluated based on an objective standard rather than subjective beliefs of either the deputy or the individual. The defendant's statements objectively indicate that he believed he was subject to legal restrictions due to statements made by Detective Freeman.

****Failure to Meet Probable Cause Standards****

- ****Probable Cause and Justification (Policy Standards i, iv, v):****

- The Fourth Amendment and Policy Standards I and iv require that any arrest be based on probable cause—a "fair probability" that a crime was committed, and the defendant committed it. However, according to previous details, Freeman did not provide documented probable cause for the defendant's arrest, which is critical in upholding constitutional standards.

- Additionally, according to the policy, probable cause must be determined "from the facts known at the time of the arrest." If no probable cause affidavit was provided, it suggests Freeman did not meet the minimum requirement to justify the arrest, raising questions about the legal basis for detaining the defendant.

- ****Impact of Lack of Probable Cause Affidavit:****

- Without documented probable cause, the defendant's detention is unreasonable under the Fourth Amendment, as the policy requires deputies to substantiate probable cause at the time of arrest or detainment.

****Distinguishing Between an Investigative Stop and Arrest****

- ****Prolonged Detention and Functional Arrest (Policy Standard ii):****

- The policy differentiates between a brief investigative stop justified by reasonable suspicion and an arrest requiring probable cause. An investigative stop is meant to be short and aimed at either confirming or dispelling suspicion. Freeman kept the defendant in a state of prolonged uncertainty, as implied by the defendant's messages about bail and charges; this would exceed the bounds of a simple investigative stop.

- The defendant's messages, especially about needing bail, suggest that he perceived his status as more than a temporary detainment. Under Policy Standard ii, if deputies extend the stop beyond reasonable limits, it may constitute a de facto arrest requiring probable cause. Given the defendant's perception of pending charges, the situation functionally became an arrest without proper procedural backing.

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- ****Policy on Arrest without a Warrant (Policy Standard vii(g)):****

- The policy allows deputies to arrest without a warrant if probable cause exists for a felony or certain misdemeanors. However, deputies are still required to meet the burden of establishing probable cause, and without documentation, this requirement is unmet in the defendant's case.

****Procedural Issues in Informing Defendant of Charges and Miranda Rights****

- ****Requirement to Inform the Arrestee of Charges (Policy Standards j, 1, vii(j)):****

- Policy Standard j mandates that, upon making an arrest, the arrestee must be informed that they are under arrest and the reason for the arrest. The defendant's messages do not indicate that he was explicitly informed of an arrest or specific charges. This lack of clarity violates procedural standards since the defendant believed he was being held without clear grounds.

- The defendant was not formally advised of his arrest status. The arrest was conducted informally, as seen in Freeman's interrogation video, as he chose to keep the status ambiguous by not even telling the defendant what he was being charged with.

- ****Potential Miranda Violations:****

- The defendant was detained in a setting that a reasonable person would interpret as custodial but was not informed of his Miranda rights. Any statements made during questioning are subject to suppression. Failure to administer Miranda rights before custodial interrogation further erodes the admissibility of the defendant's statements or any evidence derived from those statements.

****Handling and Documentation of an Arrest Warrant or Charging Document****

- ****Procedural Documentation Requirements (Policy Standards vii(b), vii(d)):****

- If an arrest had been formally conducted, a magistrate's order or arrest warrant would typically be issued, followed by documented probable cause and proper notification to the defendant. The absence of a documented probable cause affidavit and a lack of clear evidence of an arrest warrant or magistrate's order contradict the procedural standards for lawful detention under Policy Standards vii(b) and vii(d).

- Since the defendant's detention and charging process appear unclear, this is a breakdown in meeting the documentation standards required for a lawful arrest, further impacting the legality of his detention.

****Implications of Policy Violations for the Case****

- ****Fourth Amendment and Due Process Violations:****

- The Fourth Amendment requires that all arrests and detentions be reasonable and supported by probable cause. Without probable cause documentation, Miranda rights, and formal notification, the circumstances show a Fourth Amendment violation and deprivation of due process.

- The defendant's detention was unconstitutional, as it did not meet the standards for a reasonable seizure under the Fourth Amendment, thereby challenging the admissibility of any statements or evidence derived from this detention.

- ****Overall Impact on Case Integrity:****

- The failure to adhere to procedural and constitutional standards raises substantial questions about the integrity of the investigation and the legitimacy of the evidence gathered. This procedural mishandling constitutes substantial procedural breaches.

The defendant's understanding of his situation, combined with the policies of the Lee County Sheriff's Office, indicates several procedural inconsistencies:

- ****Perceived Detention:**** The defendant's statements show he felt legally restricted and anticipated charges, implying he believed he was under arrest or detention.

- ****Lack of Probable Cause Documentation:**** Without documented probable cause, the defendant's arrest should be deemed unreasonable under the Fourth Amendment, impacting its legality.

- ****Failure to Administer Miranda Rights:**** Miranda rights were not provided in a setting perceived as custodial; the defendant's statements should be suppressed.

- ****Procedural Violations in Arrest Notification:**** The lack of clarity regarding the defendant's detention status violates Policy Standards regarding arrest notification and procedural transparency.

In conclusion, these findings indicate violations of Lee County policy and constitutional rights.

****Potential Outcomes and Legal Consequences of Freeman's Omission****

- ****False Arrest**:** The lack of documented probable cause rendered the arrest unlawful.

- ****Questioning Freeman's Conduct**:** Freeman's failure to document probable cause raises severe concerns about the validity of the entire investigation. This omission is part of a pattern of neglecting legal protocols, which should prompt further investigation into other areas of the case.

- ****Impact on Future Investigations and Oversight**:** In this case, procedural deviations should lead to greater oversight or policy changes within Freeman's department since officers are not consistently following documentation standards.

****Summary of Key Points****

Freeman's failure to document the probable cause for the defendant's arrest represents a significant procedural deviation, especially given his experience and knowledge of legal standards. This omission:

- Undermines the legitimacy of the arrest and creates grounds for a constitutional challenge

- All statements should be suppressed due to Fourth Amendment violations.

- Freeman's credibility and non-adherence to protocol have a significant chance of leading to a negative outcome in the trial for the defendant.

Freeman's failure to document the probable cause for the defendant's arrest is a serious procedural deviation that significantly impacts the case's legal standing. This departure from standard practice raises questions about Freeman's investigative integrity. The numerous violations call into question the validity of his evidence and testimony in the eyes of the court.

****The Magistrate's Retrospective Order and Its Legal Implications****

****The Role of a Magistrate in the Arrest Process****

- ****The Role of a Magistrate in the Arrest Process:**** As an independent judicial authority, a magistrate plays a crucial role in the arrest process. They review law enforcement's request for an arrest warrant to ensure it meets the probable cause requirement. This check is a vital part of the judicial review process, which helps safeguard citizens' rights by ensuring that law enforcement's decision to detain an individual is based on adequate legal grounds, not merely on suspicion or an officer's discretion. In most cases, when law enforcement presents evidence of probable cause to a magistrate, the magistrate issues a formal arrest warrant. This document authorizes the arrest, ensuring that any subsequent detention meets constitutional standards.

****What the Retrospective Order Indicates in This Case****

- ****Approval of an Existing Detention****: Rather than issuing an arrest warrant, the magistrate issued an order justifying the defendant's "detention is justified because there is probable cause." The magistrate's specific language in the order clearly defines the defendant as already in custody **before** Freeman approached the magistrate. This implies that the defendant was detained or arrested based on probable cause **prior** to any formal judicial review.

- ****Implication of Warrantless Detention****: The wording "arrested without a warrant" proves that Freeman gave false testimony under oath as the defendant was already detained before any formal judicial review. Rather than approving probable cause **before** custody (the norm), this retrospective order served as a post hoc justification for the detention already initiated by Freeman. This unusual legal approach differs substantially from standard warrant issuance, which typically involves documentation and review before custody. There is no probable cause in writing, so there is no official record of the basis for the defendant's arrest, which is a serious procedural gap. Documentation is critical when an arrest occurs without a warrant, as it ensures that the detention is justified under the law and transparent to all parties involved.

****Legal Standards for Warrantless Detentions****

- ****Fourth Amendment Protections****: The Fourth Amendment guarantees citizens' freedom from unreasonable seizures, including warrantless arrests. Warrantless detentions are permitted only under exigent circumstances or when law enforcement directly witnesses a crime. In cases lacking these elements, law enforcement generally needs a warrant or immediate judicial approval post-detention that is documented.

- ****Application to Freeman's Actions****: Freeman's decision to detain the defendant without securing a warrant deviates from these established standards. Given that the defendant's detention was justified retrospectively rather than through prospective judicial approval, this procedure likely circumvents the protections of all law enforcement agencies.

****Concerns with the Magistrate's Retrospective Approval****

- ****Lack of Pre-Detention Review****: An officer presents probable cause to the magistrate, who assesses whether the evidence justifies a warrant before detention. Freeman effectively bypassed the standard judicial review process by detaining the defendant first and seeking approval afterward.

- ****Reliance on Verbal Justification****: Freeman presented probable cause verbally without documentation; the magistrate had only Freeman's description to go on without the support of written evidence. This fails to provide a legal foundation for detention, as verbal explanations lack the accountability and reviewability of formal documentation.

- ****Potential Constitutional Issues****: The retrospective approval order, while providing a semblance of legality, still falls short constitutionally, as the delay in judicial review could be argued as infringing upon the defendant's Fourth Amendment rights. Without a pre-detention review or written probable cause documentation, the arrest violates the defendant's rights.

****Procedural Implications of the Retrospective Order****

- ****Deviation from Standard Arrest Protocols****: This retrospective order represents a deviation from routine law enforcement practices. Typically, law enforcement presents probable cause for an arrest warrant **before** taking a person into custody or promptly brings the detainee before a

magistrate with documented evidence if an individual is detained first due to urgent circumstances.

- ****Why This Approach Is Problematic****: The magistrate's order to justify an already-completed detention disrupts the intended sequence of lawful arrest processes. Without a warrant, custody is based solely on Freeman's assertion of probable cause. In such a scenario, a magistrate's retrospective approval could imply a less rigorous assessment of probable cause, as it lacks the immediate review and evidence scrutiny typically required before custody.

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****Legal Challenges and Vulnerabilities****

- ****Unlawful Detention****: The arrest was unlawful due to the lack of a warrant and the retrospective nature of the magistrate's order. The absence of a standard probable cause assessment before custody weakens the detention's legal validity to the point that it violates procedural due process.

- ****Civil Rights Violation Claims****: The arrest and detention violated Fourth Amendment protections; we will pursue civil action against the department and involved officers for infringement of his constitutional rights through unlawful seizure and detention.

****Comparing the Standard Warrant Processes to the Unusual Retrospective Order****

- ****Standard Procedure****: In a typical arrest, officers present documented probable cause to the magistrate, who then issues an arrest warrant. This warrant establishes legality before custody and is based on a thorough, documented review of the facts.

- ****Retrospective Justification as a Procedural Weakness****: In stark contrast to the standard procedure, the retrospective order bypasses the pre-detention safeguard of probable cause review. This means the defendant's detention was based on Freeman's judgment alone without prior judicial approval, a process that circumvents the usual checks and balances to prevent arbitrary or unjustified detentions.

****Understanding Freeman's Experience and Its Role In This Unusual Process****

- ****Expectations Based on Experience****: Freeman's long history in law enforcement, including teaching law enforcement procedures, indicates he would be well aware of probable cause requirements and the importance of prompt judicial review. His failure to follow these steps is either an intentional bypass of procedure or a significant oversight.

- ****Possible Misinterpretation or Misuse of Authority****: Freeman's decision to proceed with the defendant's detention without prior judicial review is not just a deviation from protocol but a potential misuse of his authority. This reflects a misinterpretation of his authority and an assumption that his judgment would suffice, which is inconsistent with his professional knowledge and implies that the deviation was deliberate and based on disregarding protocol.

- ****Credibility and Procedural Integrity****: Freeman's decision to pursue retrospective approval could raise doubts about his adherence to protocol, particularly in light of his evasive testimony regarding the defendant's custody timing. This casts further scrutiny on Freeman's judgment and adherence to established legal standards.

****Failure to Bring the Defendant Before a Magistrate****:

When a suspect is arrested without a warrant, it is standard to bring them before a magistrate or judge promptly. The magistrate's role

is to review the basis for the arrest, assess probable cause, and ensure that the detention is lawful and supported by sufficient evidence.

The defendant was never taken before a magistrate; there was no judicial review of Freeman's decision to arrest, which infringes on the suspect's rights and bypasses a crucial safeguard against unlawful detention.

- The magistrate's order stating that "the defendant named above was arrested without a warrant and the defendant's detention is justified because there is probable cause" outlines that the magistrate approved the arrest after the fact, without ever having the defendant present.

- There is a requirement for presenting probable cause—either in writing or verbally, with the magistrate able to question the suspect in person. Without either written documentation or the defendant being brought before the magistrate, this approval lacks a foundation, making it procedurally invalid.

****Summary of Key Points****

The magistrate's retrospective order in this case diverges from standard arrest protocols, compromising the legality of the defendant's detention:

- The usual pre-detention review was bypassed, and probable cause was effectively determined after the defendant was already in custody, which goes against established legal standards.

- Freeman's failure to provide documented probable cause further weakens the procedural legitimacy of the detention, as verbal explanations alone lack accountability.

- This retrospective approval does not align with Fourth Amendment protections or typical arrest processes.

- Freeman repeatedly avoided answering questions about when the defendant was in custody, ultimately stating that the defendant was taken into custody after presenting the case to the magistrate. This is contradicted by the magistrate's order, which specifies that the defendant was arrested without a warrant.

This retrospective order serves as an after-the-fact justification for detention, yet its lack of pre-detention review and documentation is incongruent with procedural and constitutional requirements.

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****Freeman's Evasiveness in Testimony Regarding Custody****

****Observed Evasiveness in Testimony****

- ****Repeated Avoidance of Direct Questions****: Throughout his testimony, Freeman avoided directly answering questions about when the defendant was taken into custody. Even when repeatedly asked, Freeman's responses remained vague, eventually leading him to claim that the defendant's custody followed his presentation of evidence to the magistrate.

Freeman's testimony intentionally understates or avoids disclosing the sequence to minimize the procedural irregularity of detaining a suspect without judicial authorization. Freeman was aware that the arrest did not meet standard legal requirements.

- ****Delayed Response on Key Details****: Freeman only provided an answer after persistent questioning, and even then, his response was indirect and ambiguous. This behavior raises suspicion because an experienced officer like Freeman typically offers precise information about key procedural moments, such as the exact time and circumstances of a suspect's custody.

****Significance of Custody Timing in Criminal Procedure****

- ****Importance of Clear Testimony****: In criminal proceedings, officers are expected to provide clear and direct testimony regarding the timeline of events, especially when a suspect is detained. The timing of custody is critical, as it affects a suspect's Fourth Amendment rights, which protect against unlawful detention.

- ****Due Process and Accountability****: Knowing when a suspect is officially in custody establishes accountability. Clear testimony regarding custody timing helps the court evaluate the lawfulness of the detention and confirms whether procedural safeguards, like Miranda rights and probable cause, were adequately adhered to.

****Legal and Procedural Expectations from Freeman's Role****

- ****Freeman's Position and Expertise****: Given Freeman's 27 years in law enforcement, coupled with his role as an instructor in criminal investigations, his familiarity with arrest and detention protocols would be expected to be thorough. Officers at his experience level are expected to recognize the importance of clear testimony and adherence to standard procedures, particularly on issues like custody timing, which are critical to lawful detention.

- ****Implications of Vague Testimony****: Freeman's lack of clarity indicates that he did not follow standard procedures and sought to obscure procedural deviations. For an experienced officer, vague testimony is an attempt to minimize scrutiny or avoid exposing procedural flaws, which shows awareness that his handling of custody was irregular.

****Potential Motivations for Evasive Testimony****

- ****Avoidance of Admitting Procedural Missteps****: Freeman's evasiveness highlights a reluctance to disclose procedural missteps, such as detaining the defendant without documented probable cause or prior judicial approval. By delaying a direct response, Freeman attempted to sidestep the issue, revealing that the defendant's detention occurred before the magistrate's review.

- ****Preserving Case Integrity****: Freeman believed directly acknowledging a deviation from standard procedures could weaken the prosecution's case. Law enforcement officers occasionally avoid admitting procedural irregularities if they fear it could lead to evidence suppression or diminish the investigation's credibility.

****How Evasiveness Affects Freeman's Credibility****

- ****Perception of Intentional Concealment****: For the court and jury, Freeman's evasive answers create the impression that he is concealing information, particularly regarding the lawfulness of the defendant's detention. For a seasoned officer, vague responses on critical issues clearly indicate an attempt to mislead or obscure procedural flaws.

- ****Risk of Undermining Entire Testimony****: Once an officer's credibility is questioned, it creates a "spillover" effect, casting doubt on all aspects of their testimony. Freeman was deliberately evasive, creating skepticism about his investigation, including handling evidence, probable cause assessment, and other procedural actions.

- ****Witness Credibility****: Courts have long held that an officer's credibility is foundational to their testimony. Giglio establishes that knowledge is attributed to the prosecutor from all members of the prosecutor's office. In addition, knowledge should be imputed from the criminal investigative agencies that have contributed to the prosecution. *Giglio v. United States*, 405 standards for materiality, where a prosecutor has knowingly used false testimony, constitutes prosecutorial

misconduct so severe that it "can so undermine confidence in a verdict and impact the fairness of a trial that a new trial is required."

****Comparison to Standard Testimonial Expectations****

- ****Expected Transparency in Law Enforcement Testimony****: Officers are typically expected to provide transparent, factual answers under oath. When asked about procedural details like custody timing, clear and direct responses help maintain the investigation's integrity and reinforce trust in law enforcement practices.

- ****Why Evasiveness is Unusual for a Veteran Officer****: For an officer with Freeman's extensive experience, especially one who also serves as an instructor, vague or indirect testimony is unusual and could suggest that he was aware of possible procedural deficiencies. Freeman's behavior contrasts with the standard expectation for clarity, raising questions about whether he chose to downplay or obscure custody details intentionally.

****Legal Consequences of Evasive Testimony****

- ****Credibility and Impeachment****: In legal proceedings, evasive testimony from a law enforcement officer can be grounds for impeachment, allowing the defense to question the officer's credibility. Freeman's reluctance to answer questions about custody timing undermines the prosecution's case by casting doubt on his entire investigation.

- ****Impact on Evidence Admissibility****: Freeman's testimony is unreliable and evasive. Freeman's apparent lack of transparency undermines the chain of custody, probable cause, and other evidence-handling standards.

****Summary of Key Points****

Freeman's evasive behavior during testimony regarding custody timing has significant procedural and legal implications:

- His reluctance to directly address custody details is an attempt to avoid admitting procedural missteps or irregularities, indicating awareness that the defendant's detention bypassed standard protocols.
- This behavior undermines Freeman's credibility and casts doubt on the legitimacy of his investigation.
- Freeman's evasiveness undermines his credibility, impeaches his testimony, and argues for other remedies, given the due process implications of vague responses from a critical witness.

****Failure to Bring The defendant Before a Magistrate****

****Importance of Judicial Review in Warrantless Detentions****

- ****Legal Requirement for Prompt Judicial Review****: When a suspect is arrested without a warrant, it is a legal requirement to bring them before a magistrate "without unnecessary delay." Judicial review allows a magistrate to independently assess whether there was probable cause for the detention, providing a crucial check on law enforcement's authority. This requirement is fundamental to upholding Fourth Amendment protections, ensuring that individuals are not subject to arbitrary or extended detention without judicial oversight.

- ****Role of Judicial Review in Due Process****: Judicial review is an essential safeguard for due process. Without it, suspects risk prolonged detention based solely on an officer's discretion, leading to unlawful detention if probable cause is insufficient. A magistrate's involvement provides an impartial assessment to confirm that the detention is based on lawful grounds.

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****Freeman's Role and Expectations Based on His Experience****

- ****Understanding the Importance of Judicial Oversight****: Given his 27 years in law enforcement and experience in professional standards, Freeman would be well-versed in the requirement to bring detained individuals before a magistrate. His experience implies a clear understanding of the legal standards and the potential consequences of failing to secure judicial review.

- ****Procedural Expectation in Law Enforcement****: For an experienced officer, failing to bring a detainee before a magistrate is unusual and raises questions about adherence to established protocols. Freeman's failure to take this step, combined with his lack of probable cause documentation, is either a deliberate bypass of standard procedure or a significant oversight. Given his role as an instructor, this omission seems unlikely to be unintentional and may indicate an awareness of procedural shortcuts.

****Consequences of Bypassing Magistrate Review****

- ****Risk of Unlawful Detention Claims****: Freeman's actions is an unlawful detention by not bringing the defendant before a magistrate. Without judicial review, the defendant's detention relies solely on Freeman's probable cause assessment, which, lacking documentation, cannot be verified. It is a clear violation of the defendant's rights.

- ****Procedural Weaknesses in Judicial Review Retrospective****: The retrospective order from the magistrate stating that the defendant was detained "without a warrant" does not remedy the lack of pre-detention judicial oversight. The order may provide a semblance of legality, but without a prompt pre-detention review, it lacks the constitutional backing necessary for lawful detention. This procedural shortcut infringes on the defendant's right to prompt judicial evaluation.

****Implications for the Defendant's Fourth Amendment Rights****

- ****Violation of Constitutional Standards****: In the defendant's case, the absence of prompt judicial review amounts to a Fourth Amendment violation. Freeman bypassed pivotal protection to prevent prolonged detention without legal justification by failing to secure timely judicial oversight. Such a deviation from protocol undermines due process and could be viewed as an unconstitutional deprivation of liberty.

****Contextual Comparison: Standard Procedures vs. Freeman's Actions****

- ****Standard Law Enforcement Practice****: In a typical arrest scenario without a warrant, an officer would present probable cause documentation to a magistrate or bring the suspect directly before the magistrate for a probable cause hearing. This process allows a judge to review the facts, ensuring the detention is justified. Any delay in this review could lead to a constitutional challenge.

- ****Freeman's Deviation from Expected Practice****: Freeman deviated from this standard approach by not taking the defendant before a magistrate. Even if he believed the evidence was strong, an experienced officer would understand that a magistrate must review probable cause to protect against unlawful detention claims. Freeman's failure to secure this review suggests an awareness of procedural shortcuts and undermines the credibility of the defendant's detention as lawful.

****Potential Legal Ramifications for the Case****

- ****Impact on Detention Legitimacy****: Failing to provide the defendant with prompt judicial review is inherently flawed, raising serious due process concerns.

- ****Challenge to the Prosecution's Evidence****: Without judicial review, the officer violated constitutional standards.

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****Freeman's Knowledge and Intent****

- ****Implications of Freeman's Experience and Intentionality****: Given Freeman's extensive law enforcement background, his omission of a magistrate review means he took deliberate shortcuts or believed his assessment of probable cause was sufficient to bypass judicial oversight. His actions indicate a significant departure from established protocols and a possible attempt to streamline the detention process by minimizing procedural safeguards.

- ****Erosion of Credibility****: Freeman's decision not to bring the defendant before a magistrate and his evasive testimony regarding custody timing undermines his credibility. They are indicative of a pattern of procedural deviations, casting doubt on his investigation's integrity and adherence to lawful practices.

****Summary of Key Points****

Freeman's failure to bring the defendant before a magistrate represents a significant procedural gap with substantial legal consequences:

- Judicial review is a cornerstone of due process, particularly for warrantless detentions, and the lack of such review in this case amounts to a Fourth Amendment violation.

- Freeman's decision to bypass judicial oversight raises questions about the lawfulness of the defendant's detention, making the detention vulnerable to legal challenge and potential evidence suppression.

- For a law enforcement officer of Freeman's experience, such a deviation is unlikely to be unintentional; it is either an awareness of procedural shortcuts or an attempt to bypass due process safeguards.

Freeman's actions in this regard have far-reaching implications. They affect the legitimacy of the defendant's detention, impact the admissibility of evidence, and expose the department to liability for civil rights violations.

1\ Freeman's Background and Experience

Freeman's experience spans nearly thirty years in law enforcement. He has advanced certifications and is an instructor at a local college, teaching topics such as criminal investigation and law enforcement procedures.

- Freeman is a Captain with the Lee County Sheriff's Office, responsible for Professional Standards and Internal Investigations, which includes oversight of hiring and internal investigations.

- His law enforcement career spans nearly 27 years, including previous roles with the Lillington Police Department in Harnett County, contract work with the Department of Defense, and instructing on forensic evidence at the U.S. Special Operations Command (USASOC).

- He also holds advanced law enforcement certifications and teaches basic law enforcement training, specializing in firearms and hazardous materials at Central Carolina Community College.

This extensive background implies:

- A thorough understanding of the legal processes surrounding arrests, probable cause, documentation, and procedural safeguards.

- A heightened expectation for meticulous documentation and procedural accuracy in investigations.

- Awareness of the constitutional implications and procedural requirements when detaining a suspect without a warrant.

Given this expertise, his actions and omissions should be viewed with an understanding that he likely knew the standard requirements yet chose specific approaches in this investigation that appear to deviate from standard protocol.

2\ Initial Steps and Involvement in the Case

Freeman was initially contacted while attending his brother's wedding regarding a sexual assault report filed by Lauren Deal.

- On October 19, 2019, Freeman was informed of the alleged sexual assault while at his brother's wedding. He immediately left and went to the sheriff's office, arriving around 5:40 PM.

- He arrived at the office around 5:40 PM and was briefed by Officer Haines, who provided preliminary information regarding Deal's statement. Haines indicated that Deal had spent the evening of October 18 at Goodfellas and Schooly's bars with friends Carmen Love and James, where they later encountered Benjamin Allen(the defendant), Joe DeMarco, and Steve Happel.

This sequence of events indicates that Freeman took charge of the investigation and was likely the key decision-maker in subsequent procedural matters, such as evidence collection, interviews, and determining the next steps.

3\ Freeman's Interaction with Key Individuals

Freeman's interactions with Deal and the defendant, as well as other individuals involved, are as follows:

Interview with Lauren Deal:

- Freeman interviewed Deal that same day in a room equipped with audio and video recording capabilities. This recording was later saved as evidence and designated State's Exhibit 71.

- He then retrieved video footage from Deal's mother showing Deal arriving at Central Carolina Hospital (CCH) early on October 19. This video, marked State's Exhibit 54, was timestamped at 3:42 AM. However, the timestamp is questionable.

Interview with Benjamin Allen:

- On October 19, 2019, Benjamin Allen came to the Lee County Sheriff's Office voluntarily. Freeman interviewed him in a separate room from where he had interviewed Deal earlier. This interview room was equipped with audio and video recording capabilities, and Freeman started recording by pressing a button outside the door.

- During the interview, Freeman asked the defendant about his interactions with Deal on the night of October 18. The defendant described their interactions, mentioning she hugged him, and that Deal was "rubbing up on his neck." Freeman noted that the defendant denied engaging in any sexual contact beyond hugging and kissing.

- Freeman asked the defendant to sign a consent form for a buccal swab (DNA sample), which the defendant agreed to and signed. Freeman then collected the buccal swab and documented it as evidence. This DNA sample was later entered as evidence under the State's Exhibit 77 and secured to be sent to the State Bureau of Investigation (SBI) lab for analysis.

Interviews with Other Individuals:

- Freeman contacted Joe DeMarco to obtain details of the case and further contact information for Steve Happel. The phone interviews with Freeman on October 19 were recorded, although he noted they were reluctant to participate fully.

- Freeman also interviewed Tiffany Allen and Roger Hoskins on October 31, with Hoskins later providing a written and signed statement. His

statement detailed an interaction he witnessed between Tiffany Allen and Benjamin Allen, in which The defendant reportedly mentioned concerns that Deal's allegations would ruin his life.

- Freeman recorded Hoskins' statement, obtained his signature, and also typed a formal version of Hoskins' statement for clarity and verification. Both Hoskins and Freeman signed this typed statement, which Freeman then documented as evidence.

- Freeman additionally reviewed text messages and digital evidence from Deal and friends Tiffany Allen and Carmen Love, which were pertinent to the timeline and context of the reported events. The defendant still hasn't seen the messages from Carmen Love.

These interactions built Freeman's case and informed his conclusions regarding probable cause. Still, they also revealed omissions in documentation and custody procedures, particularly concerning the arrest of Benjamin Allen, without any cross-referencing of details received.

4\ Collection and Documentation of Evidence

Evidence collected and managed by Freeman includes:

- Physical Evidence: Freeman and Lieutenant Smith later visited the defendant's residence at 94 Beacon Circle to check for any items she left behind. On the porch, they observed items, including Deal's sandals, keys, wallet, and ID. Freeman did not seize the items immediately, as he would have needed either a search warrant or the resident's consent. He received verbal permission from the defendant to retrieve the items from the porch without specifying what items he had a deputy retrieve. Freeman retrieved Deal's medical records and her Sexual Assault Evidence

Collection Kit (SAECK) from UNC Hospital Police. These items were logged into the sheriff's office evidence system and submitted to the SBI lab.

- DNA Sample: Freeman obtained the defendant's consent for a buccal swab, which he documented as evidence. The sample was later processed securely before being sent to the SBI lab.

- Video Surveillance: Freeman reviewed hours of surveillance footage from Schooly's Bar, which showed interactions between Deal, The defendant, and others. This video falsely verifies aspects of Deal's story while ignoring all instances that showed that the accuser committed perjury. Deal was seen consuming multiple drinks. This footage further informed Freeman's understanding of the evening's events

- Search Warrant: Following interviews with Tiffany Allen and Roger Hoskins, Freeman sought a search warrant for the defendant's residence (94 Beacon Circle) based on Deal's account and the information gathered through interviews. Freeman executed the search warrant on October 24, with Detective Marcum assisting. On October 24, Freeman photographed the residence and documented any items, ultimately photographing and seizing black pants. The pants were seized and logged into evidence. Still, they were not sent to the crime lab. Freeman strangely determined they were not likely to yield further valuable physical evidence but did not identify how he could decide they were the accusers. Freeman did not process any part of what would be assessed as the crime scene.

Freeman's careful steps in securing certain types of evidence (such as DNA) contrast with his lack of documentation in other areas, such as probable cause for the defendant's detention.

Information To Take into Consideration:

- After compiling evidence, Freeman verbally presented his findings to a magistrate, who provided a Magistrate's Order stating:

I, the undersigned, find that the defendant named above has been arrested without a warrant, and the defendant's detention is justified because there is probable cause to believe that on or about the date of offense shown and, in the county, named above, the defendant named above unlawfully, willfully and feloniously did ravish and carnally know LAUREN N. D. by force and against victims will.

- The magistrate's specific language in the order emphasizes that the defendant was already in custody before Freeman presented his findings verbally to the magistrate. This implies that the defendant was detained or arrested based on probable cause prior to any formal judicial review. This is reinforced by the messages the defendant sent when Freeman went to see the magistrate and left the defendant with his phone.

- The following is a breakdown and commentary on text messages sent by the defendant to Steve Happel while he was sitting in the Sheriff's office.

Ben Allen: Might need bail

Don't know yet

He said he was going to work something for me

Steve Happel: What does that mean

Ben Allen: To release me without it

They still have to file the charges

Until they get the kit back

Steve Happel: They are charging you

Ben Allen: Yup. Have to.

1\ "Might need bail / Don't know yet":

- The defendant's reference to bail indicates he believed he was in a situation where arrest or detention was possible. Bail is generally associated with the need to secure release from custody, so this statement shows that the defendant felt he was already under some form of control or restriction by law enforcement.

2\ "He said he was going to work something for me":

- This statement indicates that the defendant had been led to believe by law enforcement (presumably Detective Freeman) that some arrangement might be made to avoid immediate detention or reduce the severity of his situation. This could suggest that the defendant was under the impression he was facing imminent arrest or charges but that some leniency might be negotiated.

3\ "To release me without it / They still have to file the charges":

- The defendant's expectation of release without bail suggests that he felt in a pre-custodial or custodial phase where formal charges were anticipated. "Release me" implies he felt his freedom was already restricted, physically or by implication.

- The phrase "they still have to file the charges" shows the defendant believed charges were not only likely but a necessary step being awaited by law enforcement. This suggests he was aware he was under suspicion and that legal actions were in process.

4\ "Until they get the kit back":

- This implies the defendant was aware of an ongoing investigation contingent on forensic evidence (presumably from a medical or assault kit), meaning he understood the decision to charge him formally depended on further evidence analysis. Knowing about the investigation's reliance on forensic results reinforces the state of detention or restricted freedom.

5\ "They are charging you / Yup. Have to.":

- The defendant's response that law enforcement "have to" charge him confirms that he perceived his arrest or charging as inevitable. This shows an understanding of his status as one where law enforcement had no choice but to proceed with formal charges, further indicating he felt he was already effectively "detained" in a legal sense.

Implications for Perceived Detention

These statements demonstrate that the defendant felt legally restricted, if not physically detained, and believed he was facing imminent formal charges. His language—discussing bail, release, and pending charges—clearly outlines he perceived himself in a pre-charging or custodial state, anticipating law enforcement actions based on the ongoing investigation.

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Probable Cause and Lack of Documentation

What Probable Cause Means in Law Enforcement

- **Definition and Importance:** Probable cause is a legal standard that requires a reasonable belief, based on factual evidence, that a person has committed a crime. This standard is fundamental to Fourth Amendment protections against unreasonable searches and seizures. In the context of arrests, probable cause is a safeguard to prevent arbitrary detention by requiring officers to base arrests on solid evidence rather than suspicion alone.

- **Constitutional Context:** Under the Fourth Amendment, citizens are protected from unlawful arrests, which include arrests made without a reasonable basis. Probable cause forms the threshold that must be met before depriving an individual of liberty, serving as a check on law enforcement power to ensure that any interference with personal freedom is legally justified.

Probable Cause Documentation as a Procedural Safeguard

- **Documentation as Evidence of Legitimacy:** Documenting probable cause is crucial in establishing the legitimacy of an arrest. It provides a written record for the court, the suspect, and the public to understand the factual basis of the detention. This documentation is essential because it allows for judicial review, where a judge or magistrate can evaluate the lawfulness of the arrest.

- **Written Record and Chain of Justification:** Probable cause documentation is typically written in an affidavit or report form and is presented to a magistrate or judge when requesting an arrest warrant. This ensures a "chain of justification," showing a clear, recorded rationale behind the arrest that can be reviewed, scrutinized, or contested in court if necessary. This step is standard practice for someone in Freeman's position and would be well within his knowledge and experience.

Implications of Not Documenting Probable Cause

- **Impact on Judicial Review:** In the absence of probable cause documentation, there is no record for a judge or magistrate to assess the validity of the detention. Judicial review is a cornerstone of the legal process; without documentation, the judicial system is forced to rely solely on the officer's word, undermining transparency and accountability. For the defendant, this absence meant that no written probable cause statement was available for the court to verify the legal grounds of his detention.

- **Potential Constitutional Concerns:** A failure to document probable cause can lead to constitutional concerns, as it challenges the transparency and legitimacy of an arrest. In legal proceedings, the defense could

argue that this omission deprived the defendant of his Fourth Amendment rights, as he was detained without a clear, documented basis. Such a challenge could result in a motion to suppress evidence gathered following the arrest, potentially weakening the prosecution's case.

Consequences in Criminal Proceedings

- **Evidentiary Issues:** Lack of probable cause documentation can lead to evidentiary challenges. For instance, evidence obtained following an arrest lacking documented probable cause might be ruled inadmissible, as it may be considered "fruit of the poisonous tree." This doctrine holds that evidence derived from an unlawful act (like an arrest without proper probable cause) is tainted and, therefore, inadmissible in court.

- **Challenge to Officer Credibility:** In court, officers with extensive experience, like Freeman, are generally expected to follow protocols meticulously. Any deviation can lead to credibility concerns. Freeman's lack of documentation, despite his experience and knowledge, should lead a judge or jury to question his investigation's reliability and integrity. This doubt cast a shadow over his testimony, particularly if the defense argues that he knowingly avoided documentation to circumvent procedural scrutiny.

Freeman's Decision Against Probable Cause Documentation

Explanations and Implications: For an officer with Freeman's experience, neglecting to document probable cause is a highly unusual choice.

Possible explanations include:

- **Deliberate Avoidance:** Freeman deliberately avoided documentation to bypass judicial oversight and/or to expedite the defendant's detention. It shows significant disregard for standard protocols, raising serious questions about his methods and tainting the investigation.

- **Unintentional Oversight:** Although less likely given his background, it's possible Freeman unintentionally omitted this step, though his repeated evasiveness in testimony about the defendant's custody timing makes this seem improbable.

- **Perception of Sufficient Evidence without Documentation:** Freeman may have believed his verbal description to the magistrate (if any was given) sufficient to establish probable cause. However, verbal assertions without supporting documentation do not meet procedural standards and fail to provide a reliable, reviewable record.

- **Avoiding Examination:** Freeman's repeated avoidance of the questions during his testimony shows an awareness that the defendant's initial detention without a warrant did not adhere to procedure. Given his experience, Freeman recognized that any perceived deviation, such as detaining a suspect without judicial authorization, would introduce scrutiny over whether proper protocols were followed. By eventually stating that the defendant was taken into custody "after" presenting evidence, Freeman attempted to convey the appearance of adherence to typical process, even though the magistrate's documentation indicates otherwise.

- **Magistrate Role:** When a suspect is arrested without a warrant, it is standard to bring them before a magistrate or judge promptly. The magistrate's role is to review the basis for the arrest, assess probable cause, and ensure that the detention is lawful and supported by sufficient evidence. The defendant was never taken before a magistrate; there was no judicial review of Freeman's decision to arrest, which infringes on the suspect's rights and bypasses a crucial safeguard against unlawful detention.

Given Freeman's extensive experience—27 years in law enforcement and his role as an instructor—his omission of details regarding the "without a warrant" arrest authorized by the magistrate seems notable. It raises questions about the standard procedures he followed and testified to in this case.

In typical law enforcement procedure, especially for someone with Freeman's background, the expectation would be:

a. Detailed Documentation and Testimony: A detective would mention whether he formally requested a warrant or if, instead, he presented evidence and established probable cause directly to the magistrate, who then issued an order for custody based on probable cause. The probable cause for an arrest without a warrant should be in writing.

b. Understanding of Arrest Processes: Freeman's experience implies a strong understanding of the difference between arrests conducted with warrants and those based on probable cause without warrants. His familiarity with both should have allowed him to recognize and clearly articulate this distinction during his testimony.

Given the magistrate's order stating that the defendant was arrested "without a warrant," Freeman's testimony omits a crucial procedural detail. This discrepancy is significant because:

a. Clarity on Legal Procedure: For someone with his background, not addressing the specific procedure followed (i.e., no formal warrant) is a choice to simplify the description of the arrest process, leaving out details of how he justified probable cause to the magistrate.

b. Implications for Lawful Detention: Since Freeman's explanation does not mention the magistrate's unique "arrest without a warrant" order, this raises questions about whether he thoroughly clarified the basis for the defendant's detention, which is a critical point given the legal standards that apply to probable cause arrests.

In summary, Freeman's testimony does not address why the arrest deviated from the standard procedure (e.g., obtaining a formal warrant), which, given his role, could be interpreted as an incomplete explanation of events surrounding the defendant's detention. This gap in his account demands scrutiny regarding the justification and documentation of probable cause that led directly to the defendant's immediate arrest.

Freeman avoided questions about when the defendant was taken into custody, and the lack of documentation revealed he knew the process deviated from the norm and sought to downplay or obscure the sequence. Steve Freeman knew that the detention did not meet standard legal requirements. For a seasoned officer and instructor like Freeman, not documenting probable cause or not taking the suspect before a magistrate is highly irregular, especially when he fully knows the importance of these steps. His testimony avoidance is an attempt to avoid admitting procedural missteps. The evasive testimony and the magistrate's after-the-fact approval without review raise questions about the legitimacy of the arrest and the adherence to constitutional standards for lawful detention.

Departmental Standards and Expected Protocol for Documenting Probable Cause

- Standard Police Protocols: Law enforcement agencies typically mandate written documentation of probable cause when arresting a suspect without a warrant. Officers generally complete a probable cause affidavit, which provides an official record that outlines the factual basis for the arrest, allowing for transparency and oversight.

- **Freeman's Training and Expertise:** Given Freeman's extensive background, he would be fully aware of these requirements, particularly given his role as an instructor. His decision not to document probable cause could reflect an intentional deviation from standard protocol, as he would understand that documentation is integral to maintaining the legal integrity of an arrest.

Lee County Sheriff's Office Policy 02-13 Arrest and Investigative Stops
United States Constitution, Amendment IV: "The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation and particularly describing the place to be searched and the persons or things to be seized."

The arrest of a person is a seizure under the Fourth Amendment; for it to be constitutional, it must be reasonable. An arrest is unreasonable unless there is a factual basis for believing that the person to be arrested has committed a crime. The amount of factual information necessary to justify an arrest is called probable cause. Probable cause simply means that there is a fair probability that a crime was committed and the defendant committed it.

i. Legal Standards

First, a court must decide whether the deputy's conduct was such a significant interference with a person's freedom of movement that a seizure occurred under the Fourth Amendment. The United States Supreme Court has ruled that a seizure occurs when, in view of all the circumstances surrounding the incident, a reasonable person, innocent of criminal activity, would have believed that he or she was not "free to leave."

Courts use an objective standard in determining whether an individual has been seized. The question asked is: How would a reasonable person in the suspect's position view his status? It is not the deputy's subjective belief that controls; nor does the suspect's subjective belief control.

ii. Investigative Stop or Arrest

If a court determines that deputies have seized a person, it then must decide whether their conduct constituted an investigative stop or an arrest. Deputies may stop someone if they have reasonable suspicion that the person committed, is committing, or is about to commit a crime. The stop must be brief, and the deputies must pursue an investigation in a diligent and reasonable manner to confirm or to dispel their suspicion quickly. If deputies detain a person beyond these limitations, a court may determine that the seizure was the functional equivalent of an arrest that must be justified by probable cause, even if the deputies never formally arrested the person.

iii. Determination Made at the Time of the Arrest or Investigative Stop

Probable cause or reasonable suspicion must be determined from the facts known at the time of the arrest or investigative stop. It is important to remember that whatever incriminating evidence deputies find after an arrest or investigative stop is not relevant when a court determines whether they had a legal justification when they stopped or arrested someone.

iv. The Authority to Arrest: Probable Cause

Probable cause requires a showing—considering the totality of circumstances—that a crime was probably committed, and the defendant probably committed it. Thus, the degree of certainty that corresponds to

probable cause is fair probability; that it, the required proof is more than the reasonable suspicion justification but less than for such other legal evidentiary standards as preponderance of the evidence, more probable than not, more likely than not, prima facie evidence, clear or convincing evidence, or beyond a reasonable doubt.

For the factors a court considers when it determines whether a deputy has probable cause to arrest, see those factors used to determine reasonable suspicion to stop.

v. Determination of Probable Cause

(With or without an Arrest Warrant)

The determination of probable cause is the same as whether a deputy arrests with or without a warrant. However, a reviewing court may resolve a close case in favor of finding probable cause existed if the arrest was made with a warrant.

vi. Reliable Hearsay

When determining probable cause (or reasonable suspicion), a deputy or judicial official is not bound by the rules of evidence applicable to trial proceedings. Reliable hearsay may be considered.

vii. The Arrest Warrant and other Criminal Process

a) Criminal Process

A person may be taken into custody with or without the authority of criminal process. The criminal process includes arrest warrants, orders for arrest, criminal summonses, and citations. In essence, criminal process is a document indicating that a person has committed a criminal offense or an infraction; it either directs a person to appear before a court or directs an officer to arrest and bring the person before a judicial official.

b) Arrest Warrant

An arrest warrant charges a person with a criminal offense (felony or misdemeanor) and orders a deputy to arrest the person and bring the person without unnecessary delay before a judicial official to answer the charge.

Criminal process other than an arrest warrant is issued in at least two common circumstances involving arrests: When a grand jury indicts a person, an order for arrest is issued instead of an arrest warrant because the indictment is the charging document; the only necessary criminal process is the authority to arrest. If a deputy arrests a person without a warrant and brings the person before a magistrate for the initial appearance, then the magistrate will issue a magistrate's order if the magistrate finds probable cause to charge the person with a crime. An arrest warrant is unnecessary because the deputy has already arrested the person; the only necessary criminal process is a charging document.

c) Paperwork

North Carolina law requires that the issuing judicial official prepare an original and two copies of the arrest warrant. The official prepares white, green, and pink copies of the arrest warrant form and forwards the green copy to the clerk of court's office as a record that the arrest warrant was issued. The official gives the white and pink copies to the deputy for service. When the deputy arrests the person, the deputy gives the pink copy to the defendant and then fills out the return-of-service on the white copy and returns it to the clerk's office or magistrate. If an arrest warrant is not executed within 180 days of issuance, it must be returned to the clerk. But failure to return the warrant does not invalidate it, and thus a lawful arrest may be made with it.

d) Issuance and Content

Before a judicial official may issue an arrest warrant, the person who is seeking the warrant or criminal summons must present testimony under oath or affirmation. The person's testimony must contain facts from which the official can find probable cause to believe that a crime has been committed and probable cause to believe that the defendant committed it.

e) Validity of Warrant

If a warrant is valid on its face—that is, if all the formal requirements relating to the form and appearance of a warrant are satisfied—deputies are protected from civil liability in serving it even if it is later proved that the warrant is invalid. However, deputies are expected to know at least some of the legal requirements, so a deputy cannot accept just any warrant that is given to them.

f) Order for Arrest

An order for arrest is an order issued by a judicial official that directs an officer to take someone into custody. It differs from an arrest warrant in that it does not charge the person with a crime.

g) Arrest without a Warrant or Order for Arrest

Although the preferred way to make an arrest is with an arrest warrant in the deputy's possession, the law recognizes several instances when a deputy may arrest without a warrant.

h) Warrant or Order for Arrest Has Been Issued

If a deputy knows that an arrest warrant has been issued for a person, whether for a felony or a misdemeanor, he may make an arrest even though he does not have the warrant in his possession (but note the restrictions on entering premises to arrest). Mere knowledge that the arrest warrant exists is sufficient to justify the arrest; no additional probable cause is needed.

i) Felony

A deputy may arrest without a warrant when the deputy has probable cause to believe that a felony has been committed and that the person to be arrested has committed it. And the felony doesn't need to be engaged in the deputy's presence. However, the deputy may have to obtain an arrest or search warrant, or both, if the deputy needs to enter the defendant's or a third party's home to make the arrest.

j) When an Arrest is Made

When deputies make an arrest with or without a warrant, they must tell the arrestee that they are law enforcement officers, that the person is under arrest, and why the person is being arrested.

k) Exigent Circumstances

The United States Supreme Court ruled in *Welsh v. Wisconsin* that the seriousness of an offense is essential in determining whether exigent circumstances exist to permit a warrantless entry into a home to arrest. Factors that the courts will consider in deciding exigent circumstances include (1) hot pursuit of a suspect, (2) danger to the public or law enforcement officers outside or inside the dwelling if an immediate warrantless entry is not made, (3) the need to prevent the imminent destruction of evidence, (4) the need to prevent a suspect's escape, (5) whether the suspect is armed, and (6) the gravity of the offense for which the suspect is being arrested.

l) Informing the Arrestee of the Charge

North Carolina law requires arresting deputies to inform the arrestee of the offense for which he or she has been arrested.

m) Taking Fingerprints, Photographs, DNA collection

When the crime is a felony and a certain misdemeanor, the arresting law enforcement agency is required to see that the arrestee is fingerprinted and photographed; the fingerprints are then forwarded to the State Bureau of Investigation. The person may be subject to DNA collection based on the criminal charges.

n) Taking the Arrestee to a Judicial Official

Deputies who make an arrest with or without a warrant must take the arrestee for an initial appearance before a magistrate "without unnecessary delay."

The Defendant's Perception of Detention or Arrest

- Reasonable Perception of Detention (Policy Standard i):
- According to the defendant's messages, he expressed concerns about needing bail. He mentioned that charges would be filed pending the return of a kit, indicating he understood himself to be in legal jeopardy. His language—"Might need bail," "To release me without it," and "They are charging you"—suggests that the defendant felt restricted by law enforcement in some capacity.
- Under Policy Standard i, if a "reasonable person, innocent of criminal activity, would believe they are not free to leave," the interaction is considered a "seizure" under the Fourth Amendment. The defendant's apprehension about needing bail and the impression that charges were inevitable suggest he believed he was not free to leave, implying he perceived himself as either under arrest or in a pre-arrest status requiring release arrangements.
- Objective Standard for Perceived Custody:
- The policy states that custody status is evaluated based on an objective standard rather than subjective beliefs of either the deputy or the individual. The defendant's statements objectively indicate that he believed he was subject to legal restrictions due to statements made by Detective Freeman.

Failure to Meet Probable Cause Standards

- Probable Cause and Justification (Policy Standards i, iv, v):
- The Fourth Amendment and Policy Standards I and iv require that any arrest be based on probable cause—a "fair probability" that a crime was committed, and the defendant committed it. However, according to previous details, Freeman did not provide documented probable cause for the defendant's arrest, which is critical in upholding constitutional standards.
- Additionally, according to the policy, probable cause must be determined "from the facts known at the time of the arrest." If no probable cause affidavit was provided, it suggests Freeman did not meet the minimum requirement to justify the arrest, raising questions about the legal basis for detaining the defendant.
- Impact of Lack of Probable Cause Affidavit:
- Without documented probable cause, the defendant's detention is unreasonable under the Fourth Amendment, as the policy requires deputies to substantiate probable cause at the time of arrest or detainment.

Distinguishing Between an Investigative Stop and Arrest

- Prolonged Detention and Functional Arrest (Policy Standard ii):
- The policy differentiates between a brief investigative stop justified by reasonable suspicion and an arrest requiring probable cause. An investigative stop is meant to be short and aimed at either confirming or dispelling suspicion. Freeman kept the defendant in a state of prolonged

uncertainty, as implied by the defendant's messages about bail and charges; this would exceed the bounds of a simple investigative stop.

- The defendant's messages, especially about needing bail, suggest that he perceived his status as more than a temporary detainment. Under Policy Standard ii, if deputies extend the stop beyond reasonable limits, it may constitute a de facto arrest requiring probable cause. Given the defendant's perception of pending charges, the situation functionally became an arrest without proper procedural backing.

- Policy on Arrest without a Warrant (Policy Standard vii(g)):

- The policy allows deputies to arrest without a warrant if probable cause exists for a felony or certain misdemeanors. However, deputies are still required to meet the burden of establishing probable cause, and without documentation, this requirement is unmet in the defendant's case. Procedural Issues in Informing Defendant of Charges and Miranda Rights

- Requirement to Inform the Arrestee of Charges (Policy Standards j, l, vii(j)):

- Policy Standard j mandates that, upon making an arrest, the arrestee must be informed that they are under arrest and the reason for the arrest. The defendant's messages do not indicate that he was explicitly informed of an arrest or specific charges. This lack of clarity violates procedural standards since the defendant believed he was being held without clear grounds.

- The defendant was not formally advised of his arrest status. The arrest was conducted informally, as seen in Freeman's interrogation video, as he chose to keep the status ambiguous by not even telling the defendant what he was being charged with.

- Potential Miranda Violations:

- The defendant was detained in a setting that a reasonable person would interpret as custodial but was not informed of his Miranda rights. Any statements made during questioning are subject to suppression. Failure to administer Miranda rights before custodial interrogation further erodes the admissibility of the defendant's statements or any evidence derived from those statements.

Handling and Documentation of an Arrest Warrant or Charging Document

- Procedural Documentation Requirements (Policy Standards vii(b), vii(d)):

- If an arrest had been formally conducted, a magistrate's order or arrest warrant would typically be issued, followed by documented probable cause and proper notification to the defendant. The absence of a documented probable cause affidavit and a lack of clear evidence of an arrest warrant or magistrate's order contradict the procedural standards for lawful detention under Policy Standards vii(b) and vii(d).

- Since the defendant's detention and charging process appear unclear, this is a breakdown in meeting the documentation standards required for a lawful arrest, further impacting the legality of his detention.

Implications of Policy Violations for the Case

- Fourth Amendment and Due Process Violations:

- The Fourth Amendment requires that all arrests and detentions be reasonable and supported by probable cause. Without probable cause documentation, Miranda rights, and formal notification, the circumstances show a Fourth Amendment violation and deprivation of due process.

- The defendant's detention was unconstitutional, as it did not meet the standards for a reasonable seizure under the Fourth Amendment, thereby

challenging the admissibility of any statements or evidence derived from this detention.

- Overall Impact on Case Integrity:

- The failure to adhere to procedural and constitutional standards raises substantial questions about the integrity of the investigation and the legitimacy of the evidence gathered. This procedural mishandling constitutes substantial procedural breaches.

The defendant's understanding of his situation, combined with the policies of the Lee County Sheriff's Office, indicates several procedural inconsistencies:

- Perceived Detention: The defendant's statements show he felt legally restricted and anticipated charges, implying he believed he was under arrest or detention.

- Lack of Probable Cause Documentation: Without documented probable cause, the defendant's arrest should be deemed unreasonable under the Fourth Amendment, impacting its legality.

- Failure to Administer Miranda Rights: Miranda rights were not provided in a setting perceived as custodial; the defendant's statements should be suppressed.

- Procedural Violations in Arrest Notification: The lack of clarity regarding the defendant's detention status violates Policy Standards regarding arrest notification and procedural transparency.

In conclusion, these findings indicate violations of Lee County policy and constitutional rights.

Potential Outcomes and Legal Consequences of Freeman's Omission

- False Arrest: The lack of documented probable cause rendered the arrest unlawful.

- Questioning Freeman's Conduct: Freeman's failure to document probable cause raises severe concerns about the validity of the entire investigation. This omission is part of a pattern of neglecting legal protocols, which should prompt further investigation into other areas of the case.

- Impact on Future Investigations and Oversight: In this case, procedural deviations should lead to greater oversight or policy changes within Freeman's department since officers are not consistently following documentation standards.

Summary of Key Points

Freeman's failure to document the probable cause for the defendant's arrest represents a significant procedural deviation, especially given his experience and knowledge of legal standards. This omission:

- Undermines the legitimacy of the arrest and creates grounds for a constitutional challenge

- All statements should be suppressed due to Fourth Amendment violations.

- Freeman's credibility and non-adherence to protocol have a significant chance of leading to a negative outcome in the trial for the defendant.

Freeman's failure to document the probable cause for the defendant's arrest is a serious procedural deviation that significantly impacts the case's legal standing. This departure from standard practice raises questions about Freeman's investigative integrity. The numerous violations call into question the validity of his evidence and testimony in the eyes of the court.

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The Magistrate's Retrospective Order and Its Legal Implications

The Role of a Magistrate in the Arrest Process

- **The Role of a Magistrate in the Arrest Process:** As an independent judicial authority, a magistrate plays a crucial role in the arrest process. They review law enforcement's request for an arrest warrant to ensure it meets the probable cause requirement. This check is a vital part of the judicial review process, which helps safeguard citizens' rights by ensuring that law enforcement's decision to detain an individual is based on adequate legal grounds, not merely on suspicion or an officer's discretion. In most cases, when law enforcement presents evidence of probable cause to a magistrate, the magistrate issues a formal arrest warrant. This document authorizes the arrest, ensuring that any subsequent detention meets constitutional standards.

What the Retrospective Order Indicates in This Case

- **Approval of an Existing Detention:** Rather than issuing an arrest warrant, the magistrate issued an order justifying the defendant's "detention is justified because there is probable cause." The magistrate's specific language in the order clearly defines the defendant as already in custody before Freeman approached the magistrate. This implies that the defendant was detained or arrested based on probable cause prior to any formal judicial review.

- **Implication of Warrantless Detention:** The wording "arrested without a warrant" proves that Freeman gave false testimony under oath as the defendant was already detained before any formal judicial review. Rather than approving probable cause before custody (the norm), this retrospective order served as a post hoc justification for the detention already initiated by Freeman. This unusual legal approach differs substantially from standard warrant issuance, which typically involves documentation and review before custody. There is no probable cause in writing, so there is no official record of the basis for the defendant's arrest, which is a serious procedural gap. Documentation is critical when an arrest occurs without a warrant, as it ensures that the detention is justified under the law and transparent to all parties involved.

Legal Standards for Warrantless Detentions

- **Fourth Amendment Protections:** The Fourth Amendment guarantees citizens' freedom from unreasonable seizures, including warrantless arrests. Warrantless detentions are permitted only under exigent circumstances or when law enforcement directly witnesses a crime. In cases lacking these elements, law enforcement generally needs a warrant or immediate judicial approval post-detention that is documented.

- **Application to Freeman's Actions:** Freeman's decision to detain the defendant without securing a warrant deviates from these established standards. Given that the defendant's detention was justified retrospectively rather than through prospective judicial approval, this procedure likely circumvents the protections of all law enforcement agencies.

Concerns with the Magistrate's Retrospective Approval

- **Lack of Pre-Detention Review:** An officer presents probable cause to the magistrate, who assesses whether the evidence justifies a warrant before detention. Freeman effectively bypassed the standard judicial review process by detaining the defendant first and seeking approval afterward.

- **Reliance on Verbal Justification:** Freeman presented probable cause verbally without documentation; the magistrate had only Freeman's description to go on without the support of written evidence. This fails to provide a legal foundation for detention, as verbal explanations lack the accountability and reviewability of formal documentation.

- **Potential Constitutional Issues:** The retrospective approval order, while providing a semblance of legality, still falls short constitutionally, as the delay in judicial review could be argued as infringing upon the defendant's Fourth Amendment rights. Without a pre-detention review or written probable cause documentation, the arrest violates the defendant's rights.

Procedural Implications of the Retrospective Order

- **Deviation from Standard Arrest Protocols:** This retrospective order represents a deviation from routine law enforcement practices. Typically, law enforcement presents probable cause for an arrest warrant before taking a person into custody or promptly brings the detainee before a magistrate with documented evidence if an individual is detained first due to urgent circumstances.

- **Why This Approach Is Problematic:** The magistrate's order to justify an already-completed detention disrupts the intended sequence of lawful arrest processes. Without a warrant, custody is based solely on Freeman's assertion of probable cause. In such a scenario, a magistrate's retrospective approval could imply a less rigorous assessment of probable cause, as it lacks the immediate review and evidence scrutiny typically required before custody.

Legal Challenges and Vulnerabilities

- **Unlawful Detention:** The arrest was unlawful due to the lack of a warrant and the retrospective nature of the magistrate's order. The absence of a standard probable cause assessment before custody weakens the detention's legal validity to the point that it violates procedural due process.

- **Civil Rights Violation Claims:** The arrest and detention violated Fourth Amendment protections; we will pursue civil action against the department and involved officers for infringement of his constitutional rights through unlawful seizure and detention.

Comparing the Standard Warrant Processes to the Unusual Retrospective Order

- **Standard Procedure:** In a typical arrest, officers present documented probable cause to the magistrate, who then issues an arrest warrant. This warrant establishes legality before custody and is based on a thorough, documented review of the facts.

- **Retrospective Justification as a Procedural Weakness:** In stark contrast to the standard procedure, the retrospective order bypasses the pre-detention safeguard of probable cause review. This means the defendant's detention was based on Freeman's judgment alone without prior judicial approval, a process that circumvents the usual checks and balances to prevent arbitrary or unjustified detentions.

Understanding Freeman's Experience and Its Role In This Unusual Process

- **Expectations Based on Experience:** Freeman's long history in law enforcement, including teaching law enforcement procedures, indicates he would be well aware of probable cause requirements and the importance of prompt judicial review. His failure to follow these steps is either an intentional bypass of procedure or a significant oversight.

- **Possible Misinterpretation or Misuse of Authority:** Freeman's decision to proceed with the defendant's detention without prior judicial review is not just a deviation from protocol but a potential misuse of his authority. This reflects a misinterpretation of his authority and an assumption that his judgment would suffice, which is inconsistent with

his professional knowledge and implies that the deviation was deliberate and based on disregarding protocol.

- **Credibility and Procedural Integrity:** Freeman's decision to pursue retrospective approval could raise doubts about his adherence to protocol, particularly in light of his evasive testimony regarding the defendant's custody timing. This casts further scrutiny on Freeman's judgment and adherence to established legal standards.

Failure to Bring the Defendant Before a Magistrate:

- When a suspect is arrested without a warrant, it is standard to bring them before a magistrate or judge promptly. The magistrate's role is to review the basis for the arrest, assess probable cause, and ensure that the detention is lawful and supported by sufficient evidence.

- The defendant was never taken before a magistrate; there was no judicial review of Freeman's decision to arrest, which infringes on the suspect's rights and bypasses a crucial safeguard against unlawful detention.

- The magistrate's order stating that "the defendant named above was arrested without a warrant and the defendant's detention is justified because there is probable cause" outlines that the magistrate approved the arrest after the fact, without ever having the defendant present.

- There is a requirement for presenting probable cause—either in writing or verbally, with the magistrate able to question the suspect in person. Without either written documentation or the defendant being brought before the magistrate, this approval lacks a foundation, making it procedurally invalid.

Summary of Key Points

The magistrate's retrospective order in this case diverges from standard arrest protocols, compromising the legality of the defendant's detention:

- The usual pre-detention review was bypassed, and probable cause was effectively determined after the defendant was already in custody, which goes against established legal standards.

- Freeman's failure to provide documented probable cause further weakens the procedural legitimacy of the detention, as verbal explanations alone lack accountability.

- This retrospective approval does not align with Fourth Amendment protections or typical arrest processes.

- Freeman repeatedly avoided answering questions about when the defendant was in custody, ultimately stating that the defendant was taken into custody after presenting the case to the magistrate. This is contradicted by the magistrate's order, which specifies that the defendant was arrested without a warrant.

This retrospective order serves as an after-the-fact justification for detention, yet its lack of pre-detention review and documentation is incongruent with procedural and constitutional requirements.

Freeman's Evasiveness in Testimony Regarding Custody

Observed Evasiveness in Testimony

- **Repeated Avoidance of Direct Questions:** Throughout his testimony, Freeman avoided directly answering questions about when the defendant was taken into custody. Even when repeatedly asked, Freeman's responses remained vague, eventually leading him to claim that the defendant's custody followed his presentation of evidence to the magistrate.

Freeman's testimony intentionally understates or avoids disclosing the

sequence to minimize the procedural irregularity of detaining a suspect without judicial authorization. Freeman was aware that the arrest did not meet standard legal requirements.

- **Delayed Response on Key Details:** Freeman only provided an answer after persistent questioning, and even then, his response was indirect and ambiguous. This behavior raises suspicion because an experienced officer like Freeman typically offers precise information about key procedural moments, such as the exact time and circumstances of a suspect's custody.

Significance of Custody Timing in Criminal Procedure

- **Importance of Clear Testimony:** In criminal proceedings, officers are expected to provide clear and direct testimony regarding the timeline of events, especially when a suspect is detained. The timing of custody is critical, as it affects a suspect's Fourth Amendment rights, which protect against unlawful detention.

- **Due Process and Accountability:** Knowing when a suspect is officially in custody establishes accountability. Clear testimony regarding custody timing helps the court evaluate the lawfulness of the detention and confirms whether procedural safeguards, like Miranda rights and probable cause, were adequately adhered to.

Legal and Procedural Expectations from Freeman's Role

- **Freeman's Position and Expertise:** Given Freeman's 27 years in law enforcement, coupled with his role as an instructor in criminal investigations, his familiarity with arrest and detention protocols would be expected to be thorough. Officers at his experience level are expected to recognize the importance of clear testimony and adherence to standard procedures, particularly on issues like custody timing, which are critical to lawful detention.

- **Implications of Vague Testimony:** Freeman's lack of clarity indicates that he did not follow standard procedures and sought to obscure procedural deviations. For an experienced officer, vague testimony is an attempt to minimize scrutiny or avoid exposing procedural flaws, which shows awareness that his handling of custody was irregular.

Potential Motivations for Evasive Testimony

- **Avoidance of Admitting Procedural Missteps:** Freeman's evasiveness highlights a reluctance to disclose procedural missteps, such as detaining the defendant without documented probable cause or prior judicial approval. By delaying a direct response, Freeman attempted to sidestep the issue, revealing that the defendant's detention occurred before the magistrate's review.

- **Preserving Case Integrity:** Freeman believed directly acknowledging a deviation from standard procedures could weaken the prosecution's case. Law enforcement officers occasionally avoid admitting procedural irregularities if they fear it could lead to evidence suppression or diminish the investigation's credibility.

How Evasiveness Affects Freeman's Credibility

- **Perception of Intentional Concealment:** For the court and jury, Freeman's evasive answers create the impression that he is concealing information, particularly regarding the lawfulness of the defendant's detention. For a seasoned officer, vague responses on critical issues clearly indicate an attempt to mislead or obscure procedural flaws.

- **Risk of Undermining Entire Testimony:** Once an officer's credibility is questioned, it creates a "spillover" effect, casting doubt on all aspects of their testimony. Freeman was deliberately evasive, creating skepticism

about his investigation, including handling evidence, probable cause assessment, and other procedural actions.

• **Witness Credibility:** Courts have long held that an officer's credibility is foundational to their testimony. Giglio establishes that knowledge is attributed to the prosecutor from all members of the prosecutor's office. In addition, knowledge should be imputed from the criminal investigative agencies that have contributed to the prosecution. *Giglio v. United States*, 405 standards for materiality, where a prosecutor has knowingly used false testimony, constitutes prosecutorial misconduct so severe that it "can so undermine confidence in a verdict and impact the fairness of a trial that a new trial is required."

Comparison to Standard Testimonial Expectations

• **Expected Transparency in Law Enforcement Testimony:** Officers are typically expected to provide transparent, factual answers under oath. When asked about procedural details like custody timing, clear and direct responses help maintain the investigation's integrity and reinforce trust in law enforcement practices.

- Why Evasiveness is Unusual for a Veteran Officer: For an officer with Freeman's extensive experience, especially one who also serves as an instructor, vague or indirect testimony is unusual and could suggest that he was aware of possible procedural deficiencies. Freeman's behavior contrasts with the standard expectation for clarity, raising questions about whether he chose to downplay or obscure custody details intentionally.

Legal Consequences of Evasive Testimony

• **Credibility and Impeachment:** In legal proceedings, evasive testimony from a law enforcement officer can be grounds for impeachment, allowing the defense to question the officer's credibility. Freeman's reluctance to answer questions about custody timing undermines the prosecution's case by casting doubt on his entire investigation.

• Impact on Evidence Admissibility: Freeman's testimony is unreliable and evasive. Freeman's apparent lack of transparency undermines the chain of custody, probable cause, and other evidence-handling standards.

Summary of Key Points

Freeman's evasive behavior during testimony regarding custody timing has significant procedural and legal implications:

• His reluctance to directly address custody details is an attempt to avoid admitting procedural missteps or irregularities, indicating awareness that the defendant's detention bypassed standard protocols.

• This behavior undermines Freeman's credibility and casts doubt on the legitimacy of his investigation.

• Freeman's evasiveness undermines his credibility, impeachs his testimony, and argues for other remedies, given the due process implications of vague responses from a critical witness.

Failure to Bring The defendant Before a Magistrate

Importance of Judicial Review in Warrantless Detentions

- **Legal Requirement for Prompt Judicial Review:** When a suspect is arrested without a warrant, it is a legal requirement to bring them before a magistrate "without unnecessary delay." Judicial review allows a magistrate to independently assess whether there was probable cause for the detention, providing a crucial check on law enforcement's authority. This requirement is fundamental to upholding Fourth Amendment

protections, ensuring that individuals are not subject to arbitrary or extended detention without judicial oversight.

- **Role of Judicial Review in Due Process:** Judicial review is an essential safeguard for due process. Without it, suspects risk prolonged detention based solely on an officer's discretion, leading to unlawful detention if probable cause is insufficient. A magistrate's involvement provides an impartial assessment to confirm that the detention is based on lawful grounds.

Freeman's Role and Expectations Based on His Experience

- **Understanding the Importance of Judicial Oversight:** Given his 27 years in law enforcement and experience in professional standards, Freeman would be well-versed in the requirement to bring detained individuals before a magistrate. His experience implies a clear understanding of the legal standards and the potential consequences of failing to secure judicial review.

- **Procedural Expectation in Law Enforcement:** For an experienced officer, failing to bring a detainee before a magistrate is unusual and raises questions about adherence to established protocols. Freeman's failure to take this step, combined with his lack of probable cause documentation, is either a deliberate bypass of standard procedure or a significant oversight. Given his role as an instructor, this omission seems unlikely to be unintentional and may indicate an awareness of procedural shortcuts.

Consequences of Bypassing Magistrate Review

- **Risk of Unlawful Detention Claims:** Freeman's actions is an unlawful detention by not bringing the defendant before a magistrate. Without judicial review, the defendant's detention relies solely on Freeman's probable cause assessment, which, lacking documentation, cannot be verified. It is a clear violation of the defendant's rights.

- **Procedural Weaknesses in Judicial Review Retrospective:** The retrospective order from the magistrate stating that the defendant was detained "without a warrant" does not remedy the lack of pre-detention judicial oversight. The order may provide a semblance of legality, but without a prompt pre-detention review, it lacks the constitutional backing necessary for lawful detention. This procedural shortcut infringes on the defendant's right to prompt judicial evaluation.

Implications for the Defendant's Fourth Amendment Rights

- **Violation of Constitutional Standards:** In the defendant's case, the absence of prompt judicial review amounts to a Fourth Amendment violation. Freeman bypassed pivotal protection to prevent prolonged detention without legal justification by failing to secure timely judicial oversight. Such a deviation from protocol undermines due process and could be viewed as an unconstitutional deprivation of liberty.

Contextual Comparison: Standard Procedures vs. Freeman's Actions

- **Standard Law Enforcement Practice:** In a typical arrest scenario without a warrant, an officer would present probable cause documentation to a magistrate or bring the suspect directly before the magistrate for a probable cause hearing. This process allows a judge to review the facts, ensuring the detention is justified. Any delay in this review could lead to a constitutional challenge.

- **Freeman's Deviation from Expected Practice:** Freeman deviated from this standard approach by not taking the defendant before a magistrate. Even if he believed the evidence was strong, an experienced officer would understand that a magistrate must review probable cause to protect

against unlawful detention claims. Freeman's failure to secure this review suggests an awareness of procedural shortcuts and undermines the credibility of the defendant's detention as lawful.

Potential Legal Ramifications for the Case

- Impact on Detention Legitimacy: Failing to provide the defendant with prompt judicial review is inherently flawed, raising serious due process concerns.
- Challenge to the Prosecution's Evidence: Without judicial review, the officer violated constitutional standards.
- Freeman's Knowledge and Intent
- Implications of Freeman's Experience and Intentionality: Given Freeman's extensive law enforcement background, his omission of a magistrate review means he took deliberate shortcuts or believed his assessment of probable cause was sufficient to bypass judicial oversight. His actions indicate a significant departure from established protocols and a possible attempt to streamline the detention process by minimizing procedural safeguards.
- Erosion of Credibility: Freeman's decision not to bring the defendant before a magistrate and his evasive testimony regarding custody timing undermines his credibility. They are indicative of a pattern of procedural deviations, casting doubt on his investigation's integrity and adherence to lawful practices.

Summary of Key Points

Freeman's failure to bring the defendant before a magistrate represents a significant procedural gap with substantial legal consequences:

- Judicial review is a cornerstone of due process, particularly for warrantless detentions, and the lack of such review in this case amounts to a Fourth Amendment violation.
- Freeman's decision to bypass judicial oversight raises questions about the lawfulness of the defendant's detention, making the detention vulnerable to legal challenge and potential evidence suppression.
- For a law enforcement officer of Freeman's experience, such a deviation is unlikely to be unintentional; it is either an awareness of procedural shortcuts or an attempt to bypass due process safeguards.

Freeman's actions in this regard have far-reaching implications. They affect the legitimacy of the defendant's detention, impact the admissibility of evidence, and expose the department to liability for civil rights violations.

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